LAW & REGULATION CASE 005

14,000+

people who had joined the case as opt-in plaintiffs by May 2026, by the plaintiffs' count (Workday says 15,000)

AI HIRING · CASE 005 · MAY 2026

Court lets Workday keep its AI bias-testing data from the people suing it

In May 2026, a federal judge ruled that Workday did not have to hand over its own bias-testing data to the people suing it. The court's reason: Workday's lawyers curated the data and used the results to give legal advice. The same order made Workday produce its EEO-1 and OFCCP records. The lawsuit's discrimination claims are untried.

Evidence grade B, well supported Checked 3 Oct 2026
AAI-2026-005 · version 1 5 public sources

1 The short version

The plaintiffs are suing Workday. The court describes their claim as an AI screening system that is more likely to reject applicants who are African American, have disabilities, or are over forty. The claims have not been tried.

1. The plaintiffs asked the court to make Workday hand over its bias-testing data and its customers' applicant data. The court said no to both.
2. The court's reason for the bias-testing data: attorney-client privilege applies, because Workday's lawyers curated the data and used the results to give legal advice. The order says Workday represented that its lawyers curated the data and that the testing's purpose was legal advice.
3. On bias-testing data, the order says it addresses only the data Workday claims is privileged. On customers' data, the court said it could not order production on the record before it.
4. The court did order Workday to produce its EEO-1 and OFCCP records, saying Workday uses the same AI tools as its customers.

FACTS CHECKED IN THIS SECTION (10)

1. **F001** On 28 May 2026, United States Magistrate Judge Laurel Beeler signed a discovery order in Mobley v. Workday, Inc. (N.D. Cal., No. 3:23-cv-00770-RFL (LB)), and the court filing system shows the order filed on 29 May 2026 as document 340. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
2. **F018** The discovery order of 28 May 2026 in Mobley v. Workday describes the case as one in which the plaintiffs are suing Workday, Inc., "for utilizing an AI screening system that is more likely to deny applicants who are African American, suffer from disabilities, or are over forty years old." ATTRIBUTED · R1 · RELAYED
3. **F019** On 20 April 2026, the plaintiffs in Mobley v. Workday filed a motion to compel Workday to produce requested documents, data and discovery; the court filing system shows it as document 310. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
4. **F003** The discovery order of 28 May 2026 in Mobley v. Workday denied the plaintiffs' motion to compel Workday to produce its bias-testing data and its customers' applicant data. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
5. **F006** The discovery order of 28 May 2026 in Mobley v. Workday states that attorney-client privilege applies to Workday's bias-testing data because Workday's attorneys curated the underlying data and used the results in providing legal advice. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
6. **F007** The discovery order of 28 May 2026 in Mobley v. Workday states that Workday represented that its attorneys curated the data used in the bias testing, that the testing's overall purpose was to provide legal advice and not to be used in a business capacity, and that Workday has not submitted the data to a regulatory body. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
7. **F011** The discovery order of 28 May 2026 in Mobley v. Workday states that the plaintiffs had not shown that disclosing the HiredScore testing data to auditors waived privilege over all of Workday's bias-testing data, and that the order addresses only the bias-testing data over which Workday claims privilege. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
8. **F013** The discovery order of 28 May 2026 in Mobley v. Workday states that, on the record before it, the court could not compel production of Workday's customers' data, and that given some third parties' apparent position that Workday is the better source, the parties should be able to work together to resolve the issue. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
9. **F004** The discovery order of 28 May 2026 in Mobley v. Workday ordered Workday to produce its EEO-1 and OFCCP documents. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
10. **F015** The discovery order of 28 May 2026 in Mobley v. Workday states that Workday uses the same AI tools as its customers, and that Workday's EEO-1 and OFCCP documents are therefore relevant to its knowledge of potential demographic disparities when using AI tools. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER

B

EVIDENCE GRADE

Well supported

What the court decided comes from the court's own order. We read a public copy of it and have not matched that copy against the court's official record, so what the court decided rests on one copy of one document.

EXHIBIT 1

The numbers

14,000+

people who had joined the case as opt-in plaintiffs by May 2026, by the plaintiffs' count (Workday says 15,000)

216,622

anonymized IDs of people who applied for jobs at Workday itself, in the data Workday produced, by the plaintiffs' count

3

external bias audits of Workday's tools that the plaintiffs list: 2023, 2024 and 2026

FACTS CHECKED IN THIS SECTION (4)

1. **F032** In the discovery letter of 7 May 2026 (Dkt. 319), the plaintiffs state that more than 14,000 opt-in plaintiffs have filed consent forms to take part in the case. SUPPORTED · R2 · INTEREST UNCLEAR
2. **F033** In the discovery letter of 7 May 2026 (Dkt. 319), Workday states that the plaintiffs seek the names of more than 215,000 applicants to Workday, that at least 200,000 of them are not parties to the case, and that there are only 15,000 opt-in plaintiffs. ATTRIBUTED · R2 · ABOUT THE SPEAKER'S OWN CONDUCT
3. **F031** In the discovery letter of 7 May 2026 (Dkt. 319), the plaintiffs state that Workday produced only anonymized data on people who applied for jobs at Workday, with the names removed, which prevents each opt-in plaintiff from identifying which of the 216,622 anonymized candidate IDs is theirs. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
4. **F026** The plaintiffs' motion to compel of 20 April 2026 (Dkt. 310) states that Workday's external auditor conducted bias audits in July 2023, in September 2024, and on 20 March 2026 for the period 1 September 2025 to 28 February 2026, and that Workday had not produced the data underlying those audits. ATTRIBUTED · R2 · RELAYED

EXHIBIT 2

Day by day

Sep 2024
An external auditor finishes a bias test of Spotlight and, Workday's page says, finds no evidence of disparate impact

18 MONTHS

Mar 2026
Another analysis, by Secretariat, finishes. Workday's page reports the same finding

1 MONTH

6 Apr 2026
Workday first claims privilege over its bias-testing code, data files and results "in the formats now claimed as privileged", in a fourth privilege log, the plaintiffs say

14 DAYS

20 Apr 2026
The plaintiffs ask the court to force Workday to hand the data over

17 DAYS

7 May 2026
The two sides file a letter fighting over applicant names

21 DAYS

28 May 2026
The judge signs the order: bias-testing data stays privileged; EEO-1 and OFCCP records must be produced

91 DAYS

27 Aug 2026
Workday's quarterly report says it is defending a lawsuit alleging that certain of its AI-related products and services enable discrimination, and believes the claims lack merit; on our reading, as of 2 October 2026, it does not name the lawsuit

FACTS CHECKED IN THIS SECTION (11)

1. **F041** Workday's page "HiredScore's Focus on Responsible AI and Bias Mitigation", as archived by the Internet Archive on 5 September 2025, reports that the external auditor's test of Spotlight, completed on 21 September 2024, used "a random sample of 10 Global Large Customers data over the last 12 months of reqs and candidates, covering requisitions that were opened and/or filled between Sep 2023 to Sep 2024", and found "no evidence of disparate impact" on the calculated impact ratios. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
2. **F043** Workday's page "Responsible AI and Bias Mitigation for HiredScore Spotlight", as captured on 2 October 2026, reports that Secretariat, which Workday calls an independent third party, analysed a sample of Workday's own applicant flow data from its deployment of Spotlight (applications from U.S. residents for New York City-area positions, 1 September 2025 to 28 February 2026; the five highest-volume job profiles, only those with enough applicants in each group, and excluding applicants who gave no or conflicting gender or race information), completed the analysis on 20 March 2026, and found "no evidence of disparate impact"; the page says the results are specific to Workday's implementation of Spotlight and that outcomes may differ in other settings.
SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER

3. **F023** The plaintiffs' motion to compel of 20 April 2026 (Dkt. 310) states that Workday produced privilege logs in January 2025, on 13 March 2025 and on 31 December 2025; that none of those three logs identified privilege log entries 488, 489 or 490 or disclosed the withholding of Python bias testing code, JSON data files or bias testing results "in the formats now claimed as privileged"; and that Workday first asserted privilege over those three categories on 6 April 2026, in a fourth privilege log. ATTRIBUTED · R2 · ABOUT THE SPEAKER'S OWN CONDUCT
4. **F019** On 20 April 2026, the plaintiffs in Mobley v. Workday filed a motion to compel Workday to produce requested documents, data and discovery; the court filing system shows it as document 310. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
5. **F030** On 7 May 2026, a discovery letter about the names of people who applied for jobs at Workday was filed in Mobley v. Workday, with a section headed "Workday's Position" and one headed "Plaintiffs' Reply"; the court filing system shows it as document 319, and the court's order of 28 May 2026 says the parties filed a letter brief on whether Workday should supply the deanonymized information. VERIFIED · R1 + R2 · 2 ORIGINS, 2 EXAMINERS
6. **F001** On 28 May 2026, United States Magistrate Judge Laurel Beeler signed a discovery order in Mobley v. Workday, Inc. (N.D. Cal., No. 3:23-cv-00770-RFL (LB)), and the court filing system shows the order filed on 29 May 2026 as document 340. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
7. **F003** The discovery order of 28 May 2026 in Mobley v. Workday denied the plaintiffs' motion to compel Workday to produce its bias-testing data and its customers' applicant data. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
8. **F004** The discovery order of 28 May 2026 in Mobley v. Workday ordered Workday to produce its EEO-1 and OFCCP documents. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
9. **F006** The discovery order of 28 May 2026 in Mobley v. Workday states that attorney-client privilege applies to Workday's bias-testing data because Workday's attorneys curated the underlying data and used the results in providing legal advice. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
10. **F038** Workday's Form 10-Q for the quarter ended 31 July 2026, dated 27 August 2026, states: "We are currently defending against a lawsuit alleging that certain of our AI-related products and services enable discrimination, and although we believe that such claims lack merit, and the majority of the claims have been dismissed, legal proceedings can be lengthy, expensive, and disruptive to our operations and customers." SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
11. **F039** Workday's Form 10-Q for the quarter ended 31 July 2026 does not name Derek Mobley or Mobley v. Workday and does not mention the discovery order of 28 May 2026. UNKNOWN · RECORD SILENT AS OF 2026-10-02

2 Where the accounts disagree

Both sides, side by side. We don't pick one: the public record doesn't settle it.

? What data was Workday's 2026 bias analysis run on?

WORKDAY	THE PLAINTIFFS
A sample of Workday's own applicant data, from its own use of Spotlight.	All three audits, 2026 included, were based on "10 Global Large Customers data", which Workday has not handed over.

For the 2024 test there is no disagreement: Workday's own archived page also says "10 Global Large Customers data".

FACTS CHECKED IN THIS SECTION (4)

1. **F045** Workday's bias analysis of Spotlight completed on 20 March 2026, covering 1 September 2025 to 28 February 2026, used a sample of Workday's own applicant flow data, according to Workday's page as captured on 2 October 2026. DISPUTED

2. **F043** Workday's page "Responsible AI and Bias Mitigation for HiredScore Spotlight", as captured on 2 October 2026, reports that Secretariat, which Workday calls an independent third party, analysed a sample of Workday's own applicant flow data from its deployment of Spotlight (applications from U.S. residents for New York City-area positions, 1 September 2025 to 28 February 2026; the five highest-volume job profiles, only those with enough applicants in each group, and excluding applicants who gave no or conflicting gender or race information), completed the analysis on 20 March 2026, and found "no evidence of disparate impact"; the page says the results are specific to Workday's implementation of Spotlight and that outcomes may differ in other settings. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
3. **F046** The plaintiffs' motion to compel of 20 April 2026 (Dkt. 310) dates Workday's external bias audits to July 2023, September 2024 and 20 March 2026, and states that Workday has not produced "any of those three iterations of '10 Global Large Customers data'" that was the basis for the publicly announced results of those audits. ATTRIBUTED · R2 · RELAYED
4. **F041** Workday's page "HiredScore's Focus on Responsible AI and Bias Mitigation", as archived by the Internet Archive on 5 September 2025, reports that the external auditor's test of Spotlight, completed on 21 September 2024, used "a random sample of 10 Global Large Customers data over the last 12 months of reqs and candidates, covering requisitions that were opened and/or filled between Sep 2023 to Sep 2024", and found "no evidence of disparate impact" on the calculated impact ratios. SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER

3 In their own words

"Attorney-client privilege applies to the bias-testing data because Workday's attorneys curated the underlying data and used the results in providing legal advice."

THE COURT

"[T]he materials themselves are technical and statistical artifacts, not legal communications."

THE PLAINTIFFS

"We are currently defending against a lawsuit alleging that certain of our AI-related products and services enable discrimination, and although we believe that such claims lack merit, and the majority of the claims have been dismissed, legal proceedings can be lengthy, expensive, and disruptive to our operations and customers"

WORKDAY (10-Q, WHICH DOES NOT NAME THE LAWSUIT)

FACTS CHECKED IN THIS SECTION (4)

1. **F006** The discovery order of 28 May 2026 in Mobley v. Workday states that attorney-client privilege applies to Workday's bias-testing data because Workday's attorneys curated the underlying data and used the results in providing legal advice. SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
2. **F020** The plaintiffs' motion to compel of 20 April 2026 (Dkt. 310) argues that Workday's bias-testing materials are technical and statistical artifacts, not legal communications, and that neither attorney-client privilege nor the work product doctrine protects them. ATTRIBUTED · R2 · ABOUT THE SPEAKER'S OWN CONDUCT
3. **F038** Workday's Form 10-Q for the quarter ended 31 July 2026, dated 27 August 2026, states: "We are currently defending against a lawsuit alleging that certain of our AI-related products and services enable discrimination, and although we believe that such claims lack merit, and the majority of the claims have been dismissed, legal proceedings can be lengthy, expensive, and disruptive to our operations and customers." SUPPORTED · R2 · 1 ORIGIN, 1 EXAMINER
4. **F039** Workday's Form 10-Q for the quarter ended 31 July 2026 does not name Derek Mobley or Mobley v. Workday and does not mention the discovery order of 28 May 2026. UNKNOWN · RECORD SILENT AS OF 2026-10-02

4 Still unknown

? Workday's own court filings on privilege were not read; what Workday argued is known only from the court's order and the plaintiffs' quotes.

? Which data the words "strategic curation", which the plaintiffs quote from Workday's brief, referred to. The plaintiffs apply the words to the applicant data; the documents we read do not settle it.

? On our reading, as of 2 October 2026, Workday's quarterly report does not name this lawsuit or mention the ruling.

FACTS CHECKED IN THIS SECTION (3)

1. **F007** The discovery order of 28 May 2026 in Mobley v. Workday states that Workday represented that its attorneys curated the data used in the bias testing, that the testing's overall purpose was to provide legal advice and not to be used in a business capacity, and that Workday has not submitted the data to a regulatory body.
   SUPPORTED · R1 · 1 ORIGIN, 1 EXAMINER
2. **F036** In the discovery letter of 7 May 2026 (Dkt. 319), the plaintiffs argue that the applicant data Workday produced cannot be taken at face value, and quote Workday's opposition brief (ECF No. 315 at 14) as admitting that it "reflect[s] Workday's counsel's strategic curation of data to be tested." ATTRIBUTED · R2 · RELAYED
3. **F039** Workday's Form 10-Q for the quarter ended 31 July 2026 does not name Derek Mobley or Mobley v. Workday and does not mention the discovery order of 28 May 2026. UNKNOWN · RECORD SILENT AS OF 2026-10-02

HOW TO CITE THIS CASE

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Printed from the live case, where every statement links to its evidence.

IN CONTEXT

THEME

Law & regulation

SOURCES READ

▼ **5 documents**

1. Discovery Order Re: ECF Nos. 310, 314, 319
2. Plaintiffs' Motion to Compel Production of Requested Documents and Discovery
3. Discovery letter brief on applicant names (plaintiffs' letter, Workday's position, plaintiffs' reply)
4. Workday, Inc. Form 10-Q for the quarterly period ended July 31, 2026
5. Responsible AI and Bias Mitigation (Workday web page)

PERIOD COVERED

Sep 2024 to 27 Aug 2026

EVIDENCE CUTOFF

2 October 2026

CHECKED

3 Oct 2026, version 1